

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

SONJA TRAVICK,

a Permanent Certificated Employee,

Moving Party,

and

OAKLAND UNIFIED SCHOOL DISTRICT,

Responding Party.

OAH No. 2025051142

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge Deena R. Ghaly, Office of Administrative Hearings (OAH), State of California, heard this motion hearing by videoconference on June 20, 2025.

Attorney Clarissa M. Romero, Beeson Tayer & Bodine represented moving party Sonja Travick (Respondent). Jessica S. McLaughlin, Lozano Smith, represented responding party Oakland Unified School District (District).

BACKGROUND

Since 1993, respondent has been a permanent certificated employee of the District. She is currently a dance teacher at Oakland Technical High School (Oakland Tech).

On February 28, 2025, the District issued a Statement of Charges alleging, among other charges, respondent was liable for immoral conduct, as the term is defined by Education Code section 44932, subdivision (a)(1) (further statutory cites are to the Education Code unless otherwise designated) and persistent violation of, and refusal to obey applicable laws or the District's or the school board's regulations (willful refusal), as the term is defined by section 44932, subdivision (a)(8). The charges against respondent resulting in her suspension stem from the District's allegations that she drove on campus at an unreasonable speed and through a group of students in her path, driving over the foot of one of the students.

After a preliminary hearing known as a *Skelly* Hearing, on May 19, 2025, the District issued to respondent a Notice of Intent to Dismiss and Placement on Immediate Unpaid Suspension. Thereafter, respondent was placed on unpaid leave.

Respondent demanded a hearing on the dismissal and filed a motion for immediate reversal of the suspension (MIRS) under Education Code section 44939, subdivision (c)(1). The District filed opposition to the motion, and counsel for both parties presented oral argument at the motion hearing.

Respondent's Arguments

Respondent asserts the SOC's factual allegations, even if true, are insufficient to constitute a basis for immediate suspension without pay. Respondent contends the District's allegation does not fall into any of the typical types of conduct considered to be immoral conduct, inappropriate sexual activity, drug use or possession, and theft. Further, the allegation does not establish whether the act in question was intentional or accidental. If accidental, the alleged act would not establish unfitness to teach, a necessary element of actionable immoral conduct in the context of teacher discipline proceedings.

Regarding the willful refusal charge, Respondent asserts the District failed to properly plead it as grounds for placing Respondent on an unpaid suspension because the facts as pled do not establish a willful state of mind to violate school rules, a necessary element of the willful refusal charge.

The District's Arguments

The District asserts the acts it alleges respondent committed constitute immoral conduct because it was unsafe and harmful conduct. The District disagrees that, for purposes of teacher discipline proceedings, immoral conduct is limited to certain categories and cited several cases noting teachers' heightened standards of accountability. According to the District, respondent "utterly ignored ordinary caution, exhibited dangerous driving habits, and directly endangered students as they walked on their school campus." (District's Opposition to Motion for Immediate Reversal of Suspension, p. 4.) Further, the District argues that, whether respondent's act was accidental is of no consequence since driving itself is an intentional act.

Analysis

A school district may immediately suspend without pay a permanent certificated employee who has been charged with "immoral conduct, conviction of a felony or of any crime involving moral turpitude, with incompetency due to mental disability, with [willful refusal] or with advocating communism." (§ 44939, subd. (b).)

Suspended teachers may file a motion for immediate reversal of the suspension with the Office of Administrative Hearings. (§ 44939, subd. (c)(1).) An administrative law judge reviews the motion, and the review "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (*Ibid.*) In other words, to warrant immediate suspension, the alleged misconduct as pled in the statement of charges must constitute one of the enumerated causes for discipline set out in section 44939, subdivision (b), as grounds for immediate suspension. These grounds include immoral conduct and willful refusal. (§ 44939, subd. (b).)

Immoral Conduct

Immoral conduct is conduct "'hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.'" (*Board of Education v. Weiland* (1960) 179 Cal.App.2d 808, 811, quoting *Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740.)

The District has charged respondent with immoral conduct based on its contention respondent drove at an “unreasonable” speed on campus and over the foot of a student. The term unreasonable is too vague and broad to denote immorality even under the broad expanse of the term under the applicable case law. That respondent ran over a student’s foot, while unfortunate, can be nothing more than an accident; the District’s argument that, because driving is an intentional act, any resulting consequence cannot be an accident is unpersuasive and lacks common sense. Without more, the factual statement in the Statement of Charges does not on its face constitute immoral conduct. Therefore, it does not support an immediate suspension.

The District’s charge of willful refusal does not identify “applicable laws or the District’s or the school board’s regulations” respondent allegedly violated. As such, the District failed to demonstrate a necessary element of the charge. Therefore, this grounds for suspension also fails. Under these circumstances, respondent’s MIRS is granted.

ORDER

Respondent’s motion for immediate reversal of suspension is granted.

DATE: **06/27/2025**

Deena R. Ghaly
Deena R. Ghaly (Jun 27, 2025 12:08 PDT)

DEENA R. GHALY

Administrative Law Judge

Office of Administrative Hearings